

Board of Zoning Appeals, February 26th, 2026

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=VSDRWJaDtlg
Publication Date	2026-02-27T13:40:53Z
Target Category	delaware_county

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Delaware Muncie Metropolitan Board of Zoning Appeals — Meeting Summary

Meeting Date: February 2026 (Regular Monthly Meeting)

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The meeting of the Delaware Muncie Metropolitan Board of Zoning Appeals was called to order by the presiding officer [00:00:08](#).
- **Attendance:**
 - **Members Present:** Matt Billington, Delaney Fritsch, Richard Ivy, Christy Knapp, and Leslie Matthewson. (Quorum established with 5 members present) [[01:07](#) – [01:23](#)].
 - **Members Absent:** One member absent [00:04:54](#).
 - **Presiding Officer:** Identified as the Chairperson/President.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance led by Eileen [00:00:21](#).

- **Approval of Minutes:**
 - The December 2025 regular monthly meeting minutes were approved by roll call vote (5 yeses) [01:40 – 02:14].
 - The January 2026 monthly meeting minutes were approved by roll call vote (5 yeses) [02:18 – 02:51].

4. Substantive Business & Board Action

- **00:05:47 BZA 02-26: Kingdom Recovery LLC Variance Request**
 - **Sponsor / Presenter:** Devin Case and Brian Blevins (Kingdom Recovery LLC) 00:07:56, 00:16:30.
 - **Deliberation Summary:** Applicants requested a use variance to allow group housing for up to 15 full-time sober living residents in an existing former church building, allow off-site parking, and permit an unpaved parking lot. The property is located at 304 North Waldemere Avenue. The applicants noted they have over 10 years of personal sobriety, plan strict rules (10:00 PM curfew, zero tolerance for active drug use/narcotics, no sex offenders or violent felons, mandatory employment within 3 weeks), and operate daily supervision. City Engineer Adam Leach submitted a recommendation limiting dwelling units to 12 based on existing parking availability (11 spaces in gravel, 10 in front). The applicants agreed to lower the resident cap to 12.
 - **Item-Specific Public Input:**
 - *In Favor:* Dan Tucker (Insurance provider) 00:45:15, Jeremy Spencer (Peer recovery coach) 00:48:07, Ken Fuller (Pastor) 00:51:35, Kenneth Maxwell (IRACS worker) 00:54:24, Barbara Craycraft Maxwell 00:58:24, Josh Kubelnik (Former police officer) 01:00:55, Clinton Pierce (Sober living resident) 01:04:29, Dan Ridenhour (Mayor of Muncie) 01:09:34, Melissa Hendricks (Neighbor) 01:12:14, Mike Kinchen (Probation officer) 01:13:38, Gary Burnham (Forensic engagement coordinator) 01:16:00, Joe Rodriguez 01:18:48, Jared Hummer 01:19:50, Joshua Noble 01:13:20, Adam McDaniel 01:25:46, Jamie Blevins 01:26:52, and Katina Straw (Muncie Housing Authority) 01:29:54. Supporters emphasized the critical regional shortage of stable transitional housing, the strict accountability model enforced by the applicants, and the positive impact of peer support.
 - *In Opposition:* Pat Boggs (Adjacent property owner) 01:31:37, Lucinda Privett 01:36:32, Adrian Joseph 01:40:57, Mary Jo McCormick 01:44:05, and Jeff Kennedy 01:47:13. Opponents raised concerns regarding proximity to backyards, child safety, existing neighborhood drug issues, and the lack of comprehensive exterior cameras.

- **Action & Vote Disposition:** Approved by roll call vote (5-0), conditioned on the variance applying to the applicant only (non-transferable), all necessary safety/health/building commissioner approvals being granted prior to occupancy, and occupancy being capped at 12 residents [02:00:12 – 02:02:02].
- **02:02:35 BZA 04-26: McDonald's / Pegasus Future 2 LLC Sign Variance**
 - **Sponsor / Presenter:** Dan Olson (Upstream Design Group) representing the applicant 02:03:40.
 - **Deliberation Summary:** Request for a variance to allow a 45-foot-tall pole sign rather than a monument sign for a new McDonald's restaurant at the southeast corner of Macedonia Avenue and 29th Street. The applicant stated a pole sign is necessary due to visual obstructions from an existing billboard and multi-tenant sign, and because McDonald's relies heavily on impulse traffic visibility. Mayor Dan Ridenhour spoke in favor, noting the specific geographic difficulties of the location 02:05:37.
 - **Item-Specific Public Input:** None outside of the presentation and mayoral comment.
 - **Action & Vote Disposition:** Failed to reach the required four votes for a definitive decision (Vote: 3 yeses, 2 nos). Officially **Continued to the next BZA meeting on March 26th** [02:07:34 – 02:08:32].
- **02:13:43 BZA 05-26: Game of Homes LLC Use & Setback Variance**
 - **Sponsor / Presenter:** None present representing Game of Homes LLC 02:14:39.
 - **Deliberation Summary:** Request for a use variance to allow two dwellings in a single-family residential zone and a reduced rear setback (11 ft instead of 15 ft) at 1006 West Wayne Street 02:14:00. Because the applicant failed to appear, the board entertained a motion to continue the matter.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** **Continued by Roll Call Vote (5-0)** to the March 26th meeting so the office can contact the applicant [02:15:42 – 02:16:11].
- **02:16:23 BZA 06-26: Rachel Johnson Home Business & Sign Variance**
 - **Sponsor / Presenter:** Rachel Johnson 02:17:04.
 - **Deliberation Summary:** Request for a use variance at 11700 North Old Granville Road (Albany) to allow a commissary for a food truck, a commercial store with a commercial kitchen inside an existing pole barn (selling home-grown produce, seasonal decor, freezer beef, eggs, and house-made walnut syrup), and a 4 ft by 8 ft business sign. The applicant noted the operation is primarily owner-run (Brandon and Rachel Johnson) with seasonal hours peaking in summer and fall. No public opposition was present.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** **Approved by Roll Call Vote (5-0)**, conditioned on the use variance being for the applicant only (non-transferable) and securing all

required fire, health, and building department approvals prior to opening [02:22:21 – 02:23:11].

5. Open Public Comment / Citizen Forum

(Note: General public comments were integrated directly into the specific public hearings for the agenda items, notably during the extensive public hearing for BZA 02-26).

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - The director distributed updated BZA rules of procedure and reminded members to replace outdated copies in their packets 02:23:35.
 - Notice was given regarding upcoming community educational opportunities, including a Ball State presentation on Lewis and Clark and a free public conference 02:24:00.
 - The next regular meeting was announced for **March 26th at 6:00 PM** 02:08:21.
 - **Adjournment:** The meeting was officially adjourned following a motion 02:24:33.
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